

this CMC is continued to August 25, 2026 at 8:30 a.m. The Parties shall file a further case management conference statement and are ordered to meet and confer to discuss Alternative Dispute Resolution. No appearance is required on June 3, 2026.

3. 8:31 AM CASE NUMBER: C25-00694
CASE NAME: ELIZABETH HILAMAN VS. MCDONALD'S USA, LLC
***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing on Lines 14 and 15. This CMC is continued to trail the discovery motion scheduled for September 9, 2026 at 8:30 a.m. The Parties are ordered to meet and confer to discuss alternative dispute resolution.

4. 9:00 AM CASE NUMBER: C25-02746
CASE NAME: CARTER HALLOCK VS. WENDY JARDINE
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing on Lines 18 and 19. It is continued, along with those Lines, to June 10, 2026 at 9:00 a.m.

Law & Motion

5. 9:00 AM CASE NUMBER: C23-00085
CASE NAME: LAURA BEGIN VS. SAN RAMON VALLEY FIRE PROTECTION DISTRICT
HEARING ON SUMMARY MOTION RE DEFENDANTS SAN RAMON VALLEY FIRE PROTECTION DISTRICT AND JOHN DUGGAN

FILED BY:

TENTATIVE RULING:

Before the Court is a motion for summary judgment, or in the alternative, summary adjudication of issues filed by defendants San Ramon Valley Fire District and John Duggan. For the reasons set forth, the motion for summary judgment is **denied**, and the motion for summary adjudication is also **denied**.

Background

Plaintiff Laura Begin was hired by defendant San Ramon Valley Fire District ("SRV Fire" or the "District") as the EMS Coordinator in September 2019. In November 2021, she was placed on a medical leave by her doctor. She extended her medical leave several times until March 2023, when she resigned her position.

In the operative second amended complaint ("2AC"), Plaintiff has sued the District on four causes of action under the California Fair Employment and Housing Act, Government Code section 12940, et seq. ("FEHA") for retaliation (1st C/A), harassment – hostile work environment (2nd C/A), failure to prevent discrimination and harassment (3rd C/A), and gender discrimination (4th C/A). She has also sued Chief John Duggan. The Court previously sustained the Duggan demurrer to the first cause of action without leave to amend. (12/13/2023 Min. Order.) Duggan remains a defendant in the second

through fourth causes of action.

Legal Standards for Ruling on Motion for Summary Judgment and Summary Adjudication

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) The issues to be considered on a motion for summary judgment are defined by the pleadings. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 161.)

Motions for summary adjudication under Code of Civil Procedure section 437c(f)(1) "are 'procedurally identical' to summary judgment motions." [Citation.]" (*Duffey v. Tender Heart Home Care Agency, LLC* (2019) 31 Cal.App.5th 232, 240-241.) A motion for summary adjudication under Code of Civil Procedure section 437c(f)(1) can only be granted "if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc. § 437c(f)(1).) (*See also Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 251.)

When a defendant moves for summary judgment, the defendant bears the burden of producing evidence that plaintiff cannot prove one or more essential elements of plaintiff's claim or that there is a complete defense to the claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c(p)(2).) Once the defendant meets this initial burden, the burden shifts to the plaintiff to produce admissible evidence showing that a triable issue of fact exists. (*Advent, Inc. v. National Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453; Code Civ. Proc. § 437c(p)(2).)

In employment cases involving claims for discrimination and retaliation, courts in California apply the three-stage burden-shifting analysis established by the United States Supreme Court in *McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792, a test originally developed in the context of the burdens of proof at trial. (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1192; *Wilkins v. Community Hospital of Monterey Peninsula* (2021) 71 Cal.App.5th 806, 828 ["In summary judgment proceedings, a FEHA retaliation claim is treated the same as a FEHA discrimination claim" for purposes of the *McDonnell Douglas* burden-shifting analysis].)

"When seeking summary judgment or summary adjudication in an employment discrimination case, the burdens established by the *McDonnell Douglas* framework are altered. The 'employer, as the moving party, has the initial burden to present admissible evidence showing either that one or more elements of plaintiff's prima facie case is lacking or that the adverse employment action was based upon legitimate, nondiscriminatory factors.' [Citations omitted.] If the employer satisfies its initial burden, it '[w]ill be entitled to summary [adjudication] unless the plaintiff produces admissible evidence which raises a triable issue of fact material to the defendant's showing.' In short, by applying *McDonnell Douglas*'s shifting burdens of production in the context of a motion for summary [adjudication], 'the judge [will] determine whether the litigants have created an issue of fact to be decided by the jury.' . . . Thus, '[a]lthough the burden of proof in a [discrimination] action claiming an unjustifiable [termination] ultimately rests with the plaintiff . . . , in the case of a motion for summary . . . adjudication, the burden rests with the moving party to negate the plaintiff's right to prevail on a particular issue.[]' [Citation, some internal quotation marks omitted.] '[F]rom commencement to conclusion, the party moving for summary [adjudication] bears the burden of persuasion that there is no triable issue of material fact and that [it] is entitled to judgment as a

matter of law.' [Citation omitted.] [¶] Whether judgment as a matter of law is appropriate will depend on a number of factors, including the strength of the plaintiff's *prima facie* case, the probative value of the proof that the employer's explanation is false, and any other evidence that supports the employer's case. [Citation omitted.] However, many employment cases present issues of intent and motive, issues not determinable on paper. Such cases 'are rarely appropriate for disposition on summary judgment, however liberalized [summary judgment standards may] be.' [Citation omitted.]" (*Zamora v. Security Industry Specialists, Inc.* (2021) 71 Cal. App. 5th 1, 32-33 [quoting, among other decisions, *Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317].)

In deciding a motion for summary judgment, the Court views the evidence in the light most favorable to the opposing party, drawing "all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of the motion are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference ' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180 [quoting *Rosas v. BASF Corp.* (2015) 236 Cal.App.4th 1378, 1392].) (See also Code Civ. Proc. § 437c(d) ["[S]ummary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact."].)

"All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1483.)

Plaintiff's Request for Judicial Notice

Plaintiff filed requests for judicial notice, Exhibits 50 through 89 of her exhibits in support of her opposition. All of the documents subject to Plaintiff's requests for judicial notice are Board of Directors Meeting Packets for meetings of the board of the San Ramon Valley Fire Protection District ranging in date from March 22, 2026 to December 12, 2023. To the extent necessary under Code of Civil Procedure section 437c(q), the Court will address defendants' evidentiary objections to the requests for judicial notice of Plaintiff's Exhibits 50-89 below with defendants' other evidentiary objections.

Procedural Note on Plaintiff's Evidentiary Objection Stated in Response to Defendants' Separate Statement

Evidentiary objections stated in a response to the moving party's separate statement do not comply with Rule 3.1354 of the California Rules of Court. (See Pl. Resp. to UMF No. 8.) The Court will not rule on an evidentiary objection stated in that manner as not in compliance with Rule 3.1354.

Procedural Note on Reply Separate Statement

Code of Civil Procedure section 437c as amended effective January 1, 2025 states in relevant part, "The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers."

(Code Civ. Proc. § 437c(b)(4) [emphasis added].) Even if Moving Parties' reply separate statement does not include additional material facts or new evidentiary matter, it includes extensive argument that, if considered, would violate the letter and spirit of the reply page limitations on a summary judgment motion. The Court therefore does not consider the reply separate statement.

Analysis

Defendants move for summary judgment, or in the alternative, summary adjudication of issues as to each of the four causes of action alleged in the 2AC. The motion is supported by defendants' Separate Statement ("SS") of Undisputed Material Facts ("UMFs"). Defendants' SS consists of 118 UMFs, but in Issue Number 3, UMFs 42-75 repeat UMFs 1-34. In Issue Number 4, UMFs 78-105 repeat UMFs 1-29, and UMFs 108-118 repeat UMFs 31-41. UMFs 106 and 107 are not identical to UMFs 30 and 31, but they are similar.

Plaintiff filed a Response to the SS in which she responds to defendants' UMFs without repeating and responding to UMFs 42-75 (Issue Number 3) and UMFs 78-114. (See Plaintiff's Resp. to SS.) Nevertheless, the Court interprets Plaintiff's Response as incorporating UMFs 42-75 and 78-114 and her responses to UMFs 1-41.

Plaintiff's Response to the SS also includes Plaintiff's additional material facts ("AFs") which she contends demonstrate there are triable issues of material fact precluding summary judgment or summary adjudication of any of the causes of action (see AFs 119-321).

A. Facts Which Are Undisputed

The District provides fire, rescue and emergency medical services to certain communities in Contra Costa County, including Alamo, Blackhawk, Danvill, Diablo and the City of San Ramon, among others, serving a population of approximately 193,000 and an area of approximately 155 square miles. (UMF 2; Pl. Resp. to UMF 2.) The District's Emergency Medical Services Division ("EMS Division") is responsible for providing emergency medical services in the area covered by the District, with approximately 130 paramedics, and with medical equipment and procedures for providing prehospital medical services. (UMF 4; Pl. Resp. to UMF 4.)

There was no specific job description for the chief overseeing the EMS Division. (UMF 5; Pl. Resp. to UMF 5.) The duties of the EMS Coordinator-RN, a new position created by the District in 2019, and for which Begin was hired, included developing and maintaining the skills of the District's 130 paramedics, including providing them medical training. (UMFs 10, 11, 13; Pl. Resp. to UMFs 10, 11, 13.) No prior firefighting experience was required for the EMS Coordinator-RN position, and Plaintiff did not have prior firefighting experience. (UMFs 12, 14; Pl. Resp. to UMFs 12, 14.)

Defendant Duggan was a Battalion Chief acting as EMS Division Chief from September 2019, when Begin was hired, until March 2020, when Duggan was transferred and Battalion Chief James Selover was assigned to serve as EMS Division Chief. (UMFs 15, 16, 18; Pl. Resp. to UMFs 15, 16, 18.) Duggan was later made Training Battalion Chief 6 or 8 months after March 2020. (UMF 17; Pl. Resp. to UMF 17.) Selover had been a Captain and a Battalion Chief. (UMF 18; Pl. Resp. to UMF 18.) In August 2020, Selover was named Deputy Chief of the District, which created a need for another EMS Division Chief, and Chief Meyer assigned Battalion Chief Jonas Aguiar, who had been a Captain and then a Battalion Chief since 2018, to be EMS Division Chief. (UMFs 20, 21; Pl. Resp. to UMFs 20, 21.)

In April 2020, the District hired a retired fire fighter, Lon Phares, to perform certain special projects for the EMS Division. (UMF 23; Pl. Resp. to UMF 23.) In July 2021, Chief Meyer decided to have Lance Maples work in the EMS Division as the Interim EMS Division Chief. (UMF 25; Pl. Resp. to UMF 25.) Plaintiff does not dispute the number of years of experience of, or previous positions held by, Selover, Aguiar, Phares, and Maples, each of which had worked for the District or for another fire agency for more than a decade when they were assigned to the position of EMS Division Chief (or Interim EMS Division Chief for Maples), or to perform certain special projects in the case of Lon Phares. (Pl. Resp. to UMFs 18, 21, 24, 26.)

Plaintiff has not genuinely disputed UMF 30. The UMF describes reasons Begin contends she was more qualified than Maples to be head of the EMS division, and she "disputes" the fact by arguing they are the reasons Maples was less qualified. (Pl. Resp. to UMF 30.) The evidence cited in support of the dispute is that Meyer considered the role one of a civilian nature, so the title of EMS Division Manager was more appropriate than a division chief. (Pl. Resp. to UMF 30 [citing Pl. Index of Exhs. Exh. 112 [Meyer DT 48:10-15].)

On November 19, 2021, Plaintiff began medical leave which was extended from time to time until approximately March 13, 2023, when she resigned from the District. (UMF 34; Pl. Resp. to UMF 34.)

The general conduct by defendant Duggan Plaintiff alleges constituted harassment and created a hostile work environment is largely undisputed. (UMFs 35-41.) The conduct and statements by Duggan include a number of statements related to sexual activities, including the sexual activities of co-workers described by Duggan to Plaintiff at least once a week in 2020 and 2021, sexually suggestive comments at a retirement party for a District Board member held at Chief Meyer's house in November 2020, a rumor started by Duggan that Plaintiff was romantically involved with Chief Selover, a sexually suggestive text message exchange in June 2020 after a party, and Duggan speaking to Plaintiff at work in a "rude, condescending and degrading" tone on June 15, 2021. (UMF 35; Pl. Resp. to UMF 35.) The nature of the statements and conduct by Duggan are set forth in more specific detail in UMFs 36-41, which are essentially undisputed. It is the legal significance of the statements and conduct that is disputed by the parties.

Though listed as disputed, Plaintiff has not genuinely disputed UMF 76, in which defendants assert the first time Begin contends she made a complaint about Duggan was in November 2020. Neither Begin Declaration paragraph 19, which addresses her June 15, 2021 meeting with Duggan in which she contends he spoke to her in a rude and demeaning manner, nor Molineaux Declaration paragraph 24 (authenticating Plaintiff's Exhibit 139, the August 2021 Resendez investigation report), or the cited portions of the Selover deposition transcript support her response that she had complained orally to Selover multiple times prior to November 2020.

Plaintiff has also not genuinely disputed UMF 77 regarding Duggan's lack of awareness that Plaintiff had complained about his conduct until August 2021. The fact that Duggan was reprimanded in December 2020 as a result of Begin's complaint to the District does not mean that Duggan was informed that Begin was the employee who complained about his use of racial slurs in a meeting several other individuals attended. The UMF as stated does not address whether the District was aware of Plaintiff's complaints about Duggan, only whether Duggan himself was aware that Plaintiff had complained about him.

UMFs 115-118 are not disputed. UMFs 115-117 describe some statements made by Duggan at Chief Meyer's house at a retirement party for a District Board member in November 2020. UMF 118 summarizes the June 15, 2021 conversation between Begin and Duggan regarding a training issue in which Duggan was abrasive, told Plaintiff not to discuss training with a training Captain because the Captain did not know what he was talking about, and slammed the door because vacuuming was occurring outside his office. (*See also* UMFs 38-41.)

B. Material Facts Plaintiff Contends Are Disputed

In assessing whether Plaintiff has genuinely disputed UMFs and raised triable issues based on Plaintiff's AFs, the Court has considered evidence the Court finds material to the determination of the motion and to which either no objection has been made or as to which the Court has overruled the objection. The Court notes that in many instances, more than one item of evidence is listed as supporting Plaintiff's Response to a disputed UMF or an AF, in many cases excerpts of deposition transcripts to which no evidentiary objections were made.

Defendants argue Begin's testimony at deposition and in her declaration is "self-serving" and "uncorroborated." (Reply p. 4, ll.13-15.) The argument that a party's testimony is "self-serving" is an argument that has been rejected as founded on an outdated rule in which parties could not testify on their own behalf. (*See Oiyee v. Fox* (2012) 211 Cal.App.4th 1036, 1049-1050 ["Modern courts have recognized that all evidence proffered by a party is intended to be self-serving in the sense of supporting the party's position, and it cannot be discounted on that basis. [Citations omitted.]"]; *Michaels v. Greenberg Traurig, LLP* (2021) 62 Cal. App. 5th 512, 526 [same].)

Courts have sometimes characterized evidence offered in a declaration in opposition to a motion for summary judgment as "self-serving" and insufficient to raise a triable issue if the declaration statements directly contradicts prior admissions by the declarant in a deposition or written discovery response. (*Harris v. Thomas Dee Engineering Co., Inc.* (2021) 68 Cal. App. 5th 594, 605 [citing among other decisions *Price v. Wells Fargo Bank* (1989) 213 Cal.App.3d 465, 482, overruled on other grounds in *Riverisland Cold Storage, Inc. v. Fresno-Madera Production Credit Assn.* (2013) 55 Cal.4th 1169, 1182].) (*See also D'Amico, supra*, 11 Cal.3d at 21.) Defendants do not contend Begin's declaration in opposition to the motion contradicts her prior deposition testimony. Further, the testimony of one witness has been held to constitute substantial evidence. (*See, e.g., Greenwich S.F., LLC v. Wong* (2010) 190 Cal.App.4th 739, 767-768 [though reversing a verdict granting lost profits as damages, court stated, "The testimony of one witness may provide substantial evidence. [Citation omitted.] Cancelled checks or official documentation of the costs incurred are not required to support the jury's award. The absence of such documentation goes to the weight of the evidence and the credibility of the witness. Those determinations are for the jury."].)

1. Facts Plaintiff Disputes Related to Gender Discrimination – Issue Number 1

The Court will summarize in some detail the disputes Plaintiff presents regarding a number of UMFs in Issue Number 1 on her gender discrimination claim. The Court evaluates whether there are triable issues based on the facts in the context of the applicable law in a subsequent section of the ruling.

Plaintiff has genuinely disputed UMF 5 to the extent that UMF states that "every person" who has held the position of EMS Division Chief since 2014 was a Battalion Chief, and that the Battalion Chief job description of the District applies. (Pl. Resp. to UMF 5.) Plaintiff has genuinely disputed UMF 5,

because Maples was designated to lead the EMS Division in 2021, and he was not a Battalion Chief under the District's Battalion Chief job. (Pl. Resp. to UMF 5; Def. Index of Exhs., Exhs. 4 and 5.) The Court notes that despite testimony by Chief Meyer cited by Plaintiff regarding Chief Meyer considering Maples to be the EMS Division Manager rather than a "Chief," a number of defendants' UMFs nevertheless refer to Maples as the "Interim EMS Division Chief." (See UMFs 31-33.) This shifting designation of Maples' title/position itself raises some factual dispute. Swartzell's declaration cited by Plaintiff in support of her dispute addresses the EMS Coordinator position and does not address qualifications of the EMS Division Chief. (Pl. Resp. to UMF 5 [citing Swartzell Decl. ¶¶ 6, 7, 9, 10.]) Plaintiff has genuinely disputed UMFs 6 and 7 as an incomplete statement of the Battalion Chief job description minimum qualifications which refer to service as Fire Captain or Training Captain within the District which is material to the issues in dispute (Pl. Resp. to UMFs 6, 7.)

Plaintiff disputes in part UMFs 18, 19, 21, 22, 24, 26-32, which address the qualifications of the four men chosen by Meyer as EMS Division Chiefs from March 2020 through July 2021, the reasons Meyer chose those individuals for the position rather than choosing Plaintiff, and why Plaintiff contends her professional experience and medical services certifications made her more qualified for the position than the individuals chosen by Meyer to fulfill the head of the EMS Division role. Plaintiff argues that the male individuals were chosen based on their experience in fire suppression that they had as a Fire Captain or Battalion Chief. She contends that background was not relevant to the head of the EMS Division position which is a civilian position and focused on rendering medical services, and that her qualifications based on her professional experience in administration and certifications related to the provision of medical services therefore made her qualifications superior to the four men chosen by Meyer to fill the EMS Division Chief position. (Pl. Resp. to UMFs 18, 19, 21, 22, 24, 26-32.)

Plaintiff argues she has disputed Meyer's stated reasons for selecting the four male individuals and not her by showing Meyer's stated reasons were pretextual based on the evidence cited in opposition to UMFs 18, 19, 21, 22, 24, and 26-32. That evidence includes:

(1) the Swartzell Declaration, in which he declares that he had no fire suppression experience but when he was designated EMS Quality Improvement Coordinator pursuant to an offer of employment signed December 31, 2003, he was given the rank of Captain, a uniform, and a badge, and designated a safety employee, and took over the position of EMS Coordinator from Debbie Meier in 2006, who also had the rank of Captain, was a designated safety employee, and did not have a fire suppression background (Pl. Resp. to UMFs 18, 19);

(2) the minimum qualification of being a Battalion Chief per the District's job description required the Fire Captain or Battalion Chief service to be within the District, so Maples did not qualify as his Battalion Chief service was with another agency; (Pl. Resp. to UMFs 19, 22);

(3) Meyer admitted the EMS Division leadership standard was "discretionary" because Chief Meyer testified the leader could be a division chief or a division manager, and Chief Meyer recognized the civilian nature of the position in later giving Maples the title of EMS Division Manager (Pl. Resp. to UMFs 19, 21, 22, 26, 27);

(4) Meyer testified it was not a matter of "if" Begin could get to the role of EMS Manager but "when" (Pl. Resp. to UMFs 19, 21, 22, 28);

(5) historically the District had given Fire Captain designation to EMS personnel without the

personnel having fire suppression experience or completing the fire academy training, and the District had given the Captain designation to personnel "without fire suppression backgrounds meaning 'fire department experience' was not necessary to the role." (Pl. Resp. to UMFs 19, 21, 22, 26);

(6) the minimum qualifications for EMS Manager created in December 2023 were drafted to fit Maples (who was given the Interim EMS Manager role in July 2021) (UMFs 19, 22) (the Court does not consider the evidence regarding the December 2023 EMS Manager qualifications as the evidentiary support for the fact is Plaintiff's RJN Exhibit 89, which is unauthenticated – see ruling on evidentiary objections below);

(7) Maples admitted Plaintiff's COVID response in the EMS Division was "second to none" (Pl. Resp. to UMFs 19, 22);

(8) the 2020 Core Review recommended restructuring the EMS Division away from Battalion Chiefs and "toward civilian clinical staff with ALS or ER nursing backgrounds" which is "further evidence that fire suppression experience was not necessary to the role" (Pl. Resp. to UMFs 19, 21, 22, 28) (per Begin Decl. ¶ 23, the District retained three consultants, including Maples, in or about September 2020 to perform the review which prepared the 2020 Core Services Review report issued late 2020 or early 2021);

(9) the special projects assigned to Lon Phares for the EMS Division were "administrative and logistical projects" and "not tasks requiring fire suppression experience as a Captain, Battalion Chief, or Deputy Chief," and Defendants "fail to articulate how fire suppression experience qualified" Phares for the administrative and logistical tasks (Pl. Resp. to UMF 24);

(10) Chief Meyer does not state he compared "the qualification of Ms. Begin with Mr. Maples" in deciding to appoint Maples to the Interim EMS Manager position in July 2021 (Pl. Resp. to UMF 26);

(12) Maples had an expired EMT license and no current emergency medical training such that he was "objectively less clinically qualified" than Begin for the EMS Division leadership, but Meyer did not consider Maples' lack of credentials and emergency medical training other than his expired EMT license made Maples less qualified than Plaintiff to head the EMS Division (Pl. Resp. to UMFs 26, 30, 31);

(13) Meyer had no personal knowledge of working with Maples other than the 2020 Core Review, the fire operation Maples oversaw did not have EMS, and therefore Plaintiff contends Meyer was not familiar with "what qualifications Maples had that would allow him to run EMS" and nothing about Maples' experience as a Chief of the El Cerrito fire agency "that necessarily made him more qualified when it came to EMS" (Pl. Resp. to UMF 27);

(14) the timing of Maples' appointment as Interim EMS Division Chief (or EMS Manager), which was three weeks after Plaintiff's June 15, 2021 complaint about Duggan to Deputy Chief Selover, supports that Meyer's reasons for not choosing her were pretextual (Pl. Resp. to UMF 28);

(15) the 2020 Core Services Review recommended that the lead for the EMS Division would still be the Deputy Chief of the District (Pl. Resp. to UMF 28 [citing Pl. Exh. 110 [Maples DT 50:10-13]]);

(16) Maples was introduced to the District Board "in a single line as 'EMS Consultant'," and in

December 2023 Meyer used the "appointment without process" to justify Maples getting the permanent role of EMS Manager (Pl. Resp. to UMF 28). The Court finds the cited evidence in support of Plaintiff's response to UMF 28 does not support these statements, but the general proposition that Maples began as a consultant seems undisputed;

(17) Meyer did not consider Plaintiff's exceptional performance, COVID response leadership, and "deep EMS clinical expertise" made her qualified for the EMS Division leadership position while placing a man with "no clinical credentials above her in a medical services division" raises a triable issue of pretext (Pl. Resp. to UMF 29). The evidence cited in support of these statements in Plaintiff's response to UMF 29 does not support that Meyer did not consider Plaintiff's EMS experience, credentials or work for the District on the COVID response. Meyer implicitly testified that he was aware of her experience but stated that she had "no fire experience – or prehospital" and "then all of a sudden the world shuts down. She's only employed with us for two years. A year plus this kind of Covid thing. She just needed more time. It wasn't that she couldn't get there" and "you've got to go into the job of the EMS coordinator and do it and build up more than a year of, you know, consistency and then we could see more" (Pl. Index of Exhs. Exh. 112 [Meyer DT 59:15-22 and 61:21-25]);

(18) Meyer's declaration attesting that he considered Maples' "relevant expertise to be serving in agency-wide management roles in fire agencies" contradicts his deposition testimony and is an "after-the-fact characterization" which was "never articulated as a selection criterion before, during, or immediately after Maples' appointment" (Pl. Resp. to UMF 32). The evidence Plaintiff cites to support these propositions does not show necessarily a direct contradiction; the cited excerpts of Meyer's deposition (other than DT 71:13-73:6 which is cited but not included in either Plaintiff's Index of Exhibits, Exhibits 111 and 112) indicate that the head of the EMS Division could be either a chief or a manager, that he considered the position of a civilian nature so the manager title was more appropriate, that he was looking for someone to "manage" the division but did not believe there were specific minimum qualifications established for the position, that he spoke with "labor to make sure that there might not be somebody that wanted to go into that division as chief," and that no applications were solicited for the role, and there was no interview process (Pl. Resp. to UMF 32 [citing Pl. Exh. 111 - Meyer DT 40:13-41:6, Pl. Exh. 112 – Meyer DT 37:4-20, 48:5-10, 49:22-25, and 50:5-10]);

(19) There was no posting, job description, or application process for the position (Pl. Resp. to UMF 32).

The Court notes that UMF 29 does not recite the complete list of reasons Plaintiff contends she was qualified as set forth in her responses to Employment Law Form Interrogatory No. 202.2, Def. Exh. 8 to Def. Index of Exhibits. (*Compare* UMF 29 to Resp. to Empl. Form Rog. 202.2 [omitting "Responding Party had an extensive global health and management experience. Additionally, during Responding Party's previous employment in ER management she established and developed strong and trusted relationships with hospital management, county EMS services, residential care home directors and community members."].) Plaintiff has disputed that the reasons set forth in UMF 29 is an exhaustive list of the reasons she contends she was qualified to head the EMS Division, and that dispute is supported by her form interrogatory response.

Plaintiff disputes UMF 33 which addresses the fact that Plaintiff was excluded from meetings in

September 2021 regarding "Standards of Coverage" (Standards of Cover Meetings) which Maples attended. (Pl. Resp. to UMF 33.) There is no dispute that Begin was excluded from the meetings, and that two other women from the District did attend the meetings, Denise Pangelin (Director of Emergency Communications), and Davina Hatfield (Chief Financial Officer and head of the Finance Division). Plaintiff disputes that the reason she was excluded from the Standards of Cover Meetings was because she was not leading the division, as she contends the District improperly placed Maples above her, and that she was also excluded from budget and ISO (Insurance Services Organization) meetings. (Pl. Resp. to UMF 33.)

2. Facts Plaintiff Disputes Regarding Issue Numbers 2, 3, and 4 on Gender Harassment Based on Hostile Work Environment, Retaliation, and Failure to Prevent Discrimination and Hostile Work Environment

Issue Number 2 addressing Plaintiff's cause of action for hostile work environment (which defendants' label gender harassment) is supported only by UMFs 35-41, which are generally not disputed, as set forth above. Plaintiff arguably disputes UMF 35 as an incomplete statement of the November 2020 harassing conduct by Duggan at the party at Meyer's home, which Plaintiff expands upon in her response and citations to evidence. (Pl. Resp. to UMF 35.) Other UMFs are either not disputed, or Plaintiff disputes the legal and factual significance of the facts and events stated, not the facts per se.

In support of Issue Number 3 on Retaliation, defendants re-state UMFs 1-34 above as UMFs 42-75. They also include two facts, UMFs 76 and 77, addressed above. In support of Issue Number 4 on failure to prevent discrimination and hostile work environment, defendants have again re-stated UMFs 1-29 and 31-41, as set forth above, and added UMFs 115-118. The undisputed and disputed facts relevant to Issue Numbers 3 and 4 are not repeated but are set forth above.

C. Plaintiff's Additional Material Facts

Plaintiff has presented over 200 AFs which she contends raise triable issues. To the extent the AFs are supported by inadmissible evidence to which the Court has sustained evidentiary objections, the Court does not consider those facts unless there is other admissible evidence cited in support of the fact and the other admissible evidence is sufficient to support the AF. (See, e.g., AFs 138, 140, 154, 156, 176, 177, 178, 182, 183, 288-292, 298.)

The Court summarizes only a few of the material AFs given the extensive number presented. The role of EMS Coordinator to which Begin was assigned was not a new role in the District, but the District changed the role to a civilian role when Begin was hired, such that she was not given the rank of Captain and designated as a safety employee. (AFs 127-137, 141-146.) Chief Meyer knew Maples only as a professional colleague and attended Maples' retirement party before Meyer recruited him as a consultant for the core services review in 2020, a review which included the EMS Division. (AFs 147-153.) The Core Services Review was completed in December 2020. (AF 155.)

Plaintiff asserts Meyer promised she would have an opportunity for growth and advancement before she began her employment. (AFs 158, 159.) Deputy Chief Selover told Plaintiff to be patient and that she was doing a good job when she asked about moving up in the EMS Division. (AF 162.) The Core Review Services recommended removing the Battalion Chief from supervising the EMS Coordinator with the EMS Coordinator instead reporting directly to the Deputy Chief. (AFs 165-166.)

Maples was appointed head of the EMS Division (Interim EMS Division Chief or Manager) on July 19, 2021, about two weeks after Meyer initiated a call to Maples to ask if he would be interested in the EMS Division Chief role. (AFs 167, 168.) His appointment was also made shortly after Begin complained in writing about Duggan's comments made in a June 15, 2021 meeting. (AF 267.) The role of EMS Division Chief was vacant from April 2021 until Maples was appointed July 19, 2021. (AF 268.) No application process, job posting, or interview process occurred when Maples was appointed. (AFs 303, 304.) Meyer changed Maples' position to "manager" because he considered the position a civilian position. (AFs 300, 301.)

D. Additional Comments on Plaintiff's Evidence in Opposition to the Motion

Plaintiff cites RJN Exhibit "80" as a District Board of Directors packet dated April 27, 2016 in support of AFs 138 and 140. The Court presumes based on the stated facts in those AFs regarding Andrew Swartzwell's retirement that Plaintiff intends to refer to RJN Exhibit 50, which is a March 22, 2016 Board packet. Swartzell declares he retired from the District in March 2016. (Swartzell Decl. ¶ 2.) (RJN Exhibit 80 is a District Board packet dated April 26, 2023.) The Court has not considered Plaintiff's RJN Exhibits 62-86 as Plaintiff's Response to the UMFs in the SS and Plaintiff's AFs do not cite any of those exhibits.

In support of a number of the more than 200 AFs included in Plaintiff's Response to the SS, Plaintiff in many instances cites to paragraphs of the declaration of her counsel Molineaux to support the facts stated in the AFs. The paragraphs cited in the Molineaux Declaration do not set forth evidentiary facts and do not support the facts stated. (AFs 121-124, 150, 151, 155, 164-166, 182, 184, 186, 196-200, 245, 258, 262-264, 270, 271, 295, 296; *see also* Pl. Resp. to UMFs 24, 35, and 77.) Rather, the paragraphs cited merely authenticate exhibits attached to Plaintiff's Index of Exhibits, but those exhibits are not identified or cited in support of the AFs. (*Compare to* AF 163 [citing Plaintiff's Exh. 125, text message exchange between Begin and Hatfield], AFs 275, 278-281 [citing Exhibits to Index 120-123 and Begin Decl. paragraphs authenticating exhibits].) Nevertheless, given the mandate that the Court liberally construe the opposition evidence and the discretion the Court has to consider the exhibits referenced in the cited paragraphs of the Molineaux Declaration, the Court has considered them. (*See, e.g., King v. United Parcel Service, Inc.* (2007) 152 Cal.App.4th 426, 437-438 [on summary judgment, court had discretion to consider portions of declaration not specifically cited in the separate statement].)

E. Issue Number 1 - Sex/Gender Discrimination in Violation of FEHA (4th C/A)

Government Code section 12940(a) prohibits an employer from discriminating based on sex, disability, and other protected characteristics "in compensation or in terms, conditions, or privileges of employment." (Govt. Code § 12940(a); *Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 705.) Official actions by the employer of disparate treatment or demoting or terminating an employee based on protected characteristics such as sex or race, constitute unlawful discrimination under FEHA. (*Roby, supra*, 47 Cal.4th 686 at 705, 708.) Discrimination may also be based on a failure to promote. (*McDonnell Douglas Corp., supra*, 411 U.S. at 802; *Levy v. Regents of University of California* (1988) 199 Cal.App.3d 1334, 1347.)

"To state a prima facie case of gender, race, color, or sexual orientation discrimination under FEHA, a plaintiff must show that: '(1) he was a member of a protected class, (2) he was qualified for the

position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, . . . and (4) some other circumstance suggests discriminatory motive.' [Citation omitted.] Thus, a plaintiff must establish a causal nexus between the adverse employment action and his protected characteristic. [Citation omitted.] [¶] An employer may meet its initial burden in moving for summary judgment by presenting evidence that one or more elements of a prima facie case are lacking, or the employer acted for a legitimate, nondiscriminatory reason. [Citations omitted.] A legitimate, nondiscriminatory reason is one that is unrelated to unlawful bias and, if true, would preclude a discrimination finding. [Citation omitted.] '[I]f nondiscriminatory, [the employer's] true reasons need not necessarily have been wise or correct.' [Citation omitted.]" (*Martin v. Trustees of California State University* (2023) 97 Cal.App.5th 149, 161-162.) (See also *Guz v. Bechtel Nat. Inc.* (2000) 24 Cal. 4th 317, 355.) The parties do not dispute that Plaintiff is a member of a protected class based on her gender and that she did not receive the promotion to the position of EMS Division Chief, which can constitute an adverse employment action for purposes of an employment discrimination claim.

Defendants move for summary adjudication of the gender discrimination cause of action on three primary grounds. First, they contend that Plaintiff was not qualified for the EMS Division Chief position. Second, defendants contend they have demonstrated that the District had legitimate, nondiscriminatory reasons for not promoting Begin to the EMS Division Chief position. Third, they contend that the District did not engage preclude Plaintiff from participating in meetings and other work opportunities and initiatives based on her gender but for other, nondiscriminatory reasons.

Defendants have met their initial burden under the *McDonnell Douglas* analysis applied in the summary judgment context. They have presented evidence that since 2014, the EMS Division Chief position was held by a person who was a Battalion Chief, citing the District's Battalion Chief job descriptions. Though Maples did not meet the Battalion Chief job descriptions for the District as he never served in the District, they contend his history with the El Cerrito fire agency was equivalent in terms of years of fire agency service and rank. They have presented evidence through the Meyer Declaration of legitimate, nondiscriminatory reasons why Meyer selected James Selover, Jonas Aguiar, Lon Phares, and Lance Maples as EMS Division Chief, or Interim EMS Division Chief/Division Manager in the case of Maples.

Plaintiff has raised a triable issue of material fact as to whether Chief Meyer's decision not to promote Begin to the position of EMS Division Manager or EMS Division Chief was the result of gender discrimination, and whether the reasons given by Chief Meyer's for the decision were pretextual. Plaintiff makes two primary arguments in response. First, Plaintiff essentially argues that her qualifications and experience were better than Maples for the EMS Division Chief position because of her medical experience, medical qualifications, and prior work experience in management at hospitals, emergency rooms, and in global health, as well as her work experience during her active employment with the District. (Pl. Resp. to UMFs 29-31; AFs 119-126.) She disputes that the District required her to meet the Battalion Chief job description in order for her to be qualified to head the EMS Division, as set forth further below. (AFs 141-146, 165, 166, 158, 159, 162, 299, 301.) Second, she contends that the reasons given by the District for passing over Plaintiff for the head of the EMS Division were pretextual and that the true reasons were motivated by gender discrimination.

As to Plaintiff being qualified for the position, the totality of the evidence raises triable issues as to

the sufficiency of her qualifications. Both Chief Meyer and Deputy Chief Selover said that Plaintiff could get to a point where she could head the EMS Division. Their deposition testimony supports a reasonable inference that Plaintiff was qualified for the position (AFs 309-312); yet the District's position that she was not qualified and passed over because the position had "always" been held by a Battalion Chief since 2014, and she did not meet the qualifications of a Battalion Chief is undermined for the reasons stated below.

Unlike prior EMS Coordinators Swartzell and Meier, the District did not give Plaintiff a Captain designation. (AF 145.) If she was required to meet the qualifications of a Battalion Chief, it is not clear how she could ever "get there" since she did not hold a Captain designation with the District. Further, Maples has shown Maples did not meet the District's Battalion Chief job descriptions for lack of service with the District itself, and the District explicitly made the head of EMS Division a civilian position when it gave a civilian title to Maples of "manager." In that case, it is not clear why meeting a Battalion Chief job description was relevant to qualification for the position. The District's explanations for why plaintiff was unqualified for the position and why Maples was qualified for the position reflect shifting rationales that support an inference that the reasons she was not promoted were pretextual and may reflect gender discrimination.

The District's 2020 Core Review, which is Plaintiff's Exh. 134 and filed under the Conditional Sealing Order of April 20, 2026, was issued in December 2020, before Maples was appointed in July 2021. Meyer's admitted that he considered the head of the EMS Division role to be a civilian role and that he had discretion to appoint a "Chief" or a "Manager" and that he considered Maples to be a "manager" because of the civilian nature of the role. (AFs 171, 172, 287.) This evidence could support a reasonable inference that Meyer used the manager title because Maples did not meet the District's job description, which undermines the District's position that Plaintiff was not qualified because she did not meet the District's Battalion Chief job qualifications. (Id.; *see also* Pl. Resp. to UMFs 5-7.)

The recommendation in the 2020 Core Services Review was for the EMS Division to be "restructured away from Battalion Chiefs and toward civilian clinical staff with ALS or ER nursing backgrounds." (Pl. Resp. to UMF 19.) (*See also* AFs 165, 166.) The District's position that Plaintiff was unqualified because she did not meet the Battalion Chief job descriptions for the District is undermined by the fact that Maples who was appointed to head the EMS Division in July 2021 without any formal application or interview process also did not qualify under the District's Battalion Chief job descriptions since he had never worked for the District. (AFs 171, 172, 287.) It is undermined by other evidence of Maples' lack of qualification for the role based on the fact the fire agency where he worked did not operate an emergency services division with a fleet of ambulances and emergency medical personnel administering emergency medical services up to delivery of the patient to a hospital. (Pl. Resp. to UMF 26; AFs 148, 224, 305-308.)

Plaintiff has submitted evidence that beginning in April 2021, when Lon Phares was transitioned out of the EMS Division, there was no designated EMS Division Chief. Rather, Plaintiff was effectively performing that role beginning in April 2021, until Meyer reached out to Maples in July 2021 to ask him to assume a position as head of the EMS Division. (AFs 268, 284, 285.)

There is an inference from the evidence that appointment of Maples to head the EMS Division in July 2021 was inconsistent with the recommendations in the 2020 Core Services Review, which was issued

six months before Maples was appointed as Interim EMS Division Chief (or Manager), and after a period of three months in which there was no EMS Division Chief. (AF 268.) The recommendation issued in December 2020 was to eliminate the Battalion Chief as an intermediate supervisor and intermediate in the organizational hierarchy between the EMS Coordinator and the Deputy Chief. (AFs 165, 166; Pl. Exh. 134.) The fact the District had no EMS Division Chief beginning in April 2021 is consistent with that recommendation. (AFs 165, 166, 258.)

Plaintiff also raises triable issues as to whether the District's reasons for not promoting Plaintiff and for reaching out to Maples to assume the Interim EMS Division Chief or Manager position were pretextual based on the timing of when Meyer's decided to reach out to Maples to assume an interim position in the EMS Division. Plaintiff provides evidence that she was in effect acting as head of the EMS Division beginning in April 2021, that she complained in writing about Duggan's remarks at a June 15, 2021 meeting, and that shortly after that, on or about July 5, 2021, Meyer initiated contact with Maples to determine if Maples would be interested in assuming a role as head of the EMS Division without any solicitation or prior indication of any interest by Maples, and without any job posting, solicitation of applications, or interviews. (AFs 303, 304.)

Plaintiff also raises triable issues on pretext as she was never informed by Chief Meyer before she accepted the job as EMS Coordinator that she could not advance to head the EMS Division without a specified number of years of experience as a Captain or Battalion Chief in the District. (AFs 158, 159, 162, 321; Begin Decl. ¶ 6.) She asserts that Chief Meyer made a number of representations to her regarding her "opportunity for advancement" and his request that she "work for six to twelve months to get established." (Begin Decl. ¶ 5.) The Swartzell Declaration confirms that fire suppression experience was not necessary for the position he was given, which was EMS Quality Improvement Coordinator, and later EMS Coordinator. (Swartzell Decl. ¶¶ 6-10.) Swartzell's declaration indicates that the EMS Coordinator, Debbie Meier, also did not have fire suppression experience before he took over the position when Debbie Meier retired for medical reasons. (Swartzell Decl. ¶¶ 7, 8.) EMS Coordinator is the same position Begin declares she held when she was hired in September 2019 until she left the District in March 2023, but with a civilian role with no Captain designation. (Begin Decl. ¶ 1.)

As stated in *Martin, supra*, 97 Cal.App.5th 149, cited by the District, "evidence of pretext requires '[s]uch weaknesses, implausibilities, inconsistencies, incoherencies, or contradictions in the employer's proffered legitimate reasons for its action that a reasonable factfinder *could* rationally find them "unworthy of credence," [citation], and hence infer "that the employer did not act for the [asserted] nondiscriminatory reasons." [Citation, some internal quotation marks omitted.]' (*Id.* at 163 [italics in original, quoting *Hersant v. Department of Social Services* (1997) 57 Cal.App.4th 997, 1005].) The Court finds that Plaintiff has met that showing here. There is a reasonable inference that she was not promoted and was excluded from certain job responsibilities and meetings critical for her advancement, for reasons substantially related to her gender rather than legitimate, nondiscriminatory grounds.

The motion for summary adjudication of Issue Number One as to the fourth cause of action for gender discrimination is **denied**.

F. Issue Number 2 - Gender-Based Harassment (Hostile Work Environment) in Violation of FEHA (2nd C/A)

Government Code section 12940(j) makes sexual harassment of an employee by an employer unlawful. The statute provides that "Harassment of an employee . . . shall be unlawful if the entity, or its agents or supervisors, knows or should have known of this conduct and fails to take immediate and appropriate corrective action." (Govt. Code § 12940(j)(1).) Harassment includes: "(A) Verbal harassment, e.g., epithets, derogatory comments or slurs on a basis enumerated in the Act; [¶] (B) Physical harassment, e.g., assault, impeding or blocking movement, or any physical interference with normal work or movement, when directed at an individual on a basis enumerated in the Act; [¶] (C) Visual forms of harassment, e.g., derogatory posters, cartoons, or drawings on a basis enumerated in the Act; or [¶] (D) Sexual favors, e.g., unwanted sexual advances, which condition an employment benefit upon an exchange of sexual favors. (tit. 2 Cal. Code of Regs. § 11019(b)(2).)

FEHA does not impose a "civility code." (*Sheffield v. Los Angeles County Dept. of Social Services* (2003) 109 Cal.App.4th 153, 161.) The offensive behavior must relate to a protected category such as disability, gender or race, and must be sufficiently "severe or pervasive" so as to interfere with the employee's working conditions or work performance, creating an " 'objectively' " abusive work environment and one subjectively perceived by the employee as abusive. (*Id.* [emphasis added]; *Mokler v. County of Orange* (2007) Cal.App.4th 121, 145; *Lyle v. Warner Bros. Television Productions* (2006) 38 Cal.4th 264, 283.)

"Unlike FEHA discrimination claims, which address only explicit changes in the 'terms, conditions, or privileges of employment' (§ 12940, subd.(a)), harassment claims focus on 'situations in which the social environment of the workplace becomes intolerable because the harassment (whether verbal, physical, or visual) communicates an offensive message to the harassed employee.' [Citation omitted.] In other words, 'discrimination refers to bias in the exercise of official actions on behalf of the employer' whereas 'harassment refers to bias that is expressed or communicated through interpersonal relations in the workplace.' [Citation omitted.]" (*Bailey v. San Francisco Dist. Attorneys' Office* (2024) 16 Cal.5th 611, 627.)

Plaintiff cites Government Code section 12923. By that statute, the Legislature "declare[d] its intent with regard to application of the laws about harassment contained in this part." (Govt. Code § 12923.) "[H]arassment creates a hostile, offensive, oppressive, or intimidating work environment and deprives victims of their statutory right to work in a place free of discrimination when the harassing conduct sufficiently offends, humiliates, distresses, or intrudes upon its victim, so as to disrupt the victim's emotional tranquility in the workplace, affect the victim's ability to perform the job as usual, or otherwise interfere with and undermine the victim's personal sense of well-being." (Govt. Code § 12923(a).) "A single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive working environment." (Govt. Code § 12923(b).) "The existence of a hostile work environment depends upon the totality of the circumstances and a discriminatory remark, even if not made directly in the context of an employment decision or uttered by a nondecisionmaker, may be relevant, circumstantial evidence of discrimination." (Govt. Code § 12923(c).) The statute also states harassment cases are "rarely appropriate for disposition on summary judgment," though the Court agrees that does not

mean they can never be determined on summary judgment.

Defendants characterize Government Code section 12923 as merely a policy declaration that is not "necessarily" binding or controlling. Even if it is just considered persuasive, the Court in *Bailey, supra*, also cited by defendants, noted its holding that a single incident in which a racial epithet was used by a co-worker was sufficient to support a claim of harassment and was consistent with Government Code section 12923, and the Court reversed the summary judgment in favor of the defendant employer. Other courts have construed the enactment of Government Code section 12923 as reflecting the standards to be considered in assessing what constitutes "severe or pervasive" conduct sufficient to constitute harassment. (See *Martin v. Trustees of California State University* (2023) 97 Cal.App.5th 149, 170; *Carranza v. City of Los Angeles* (2025) 111 Cal.App.5th 388, 402 [rejecting City's contention that "the 'severe or pervasive' threshold is a 'high standard' requiring 'extreme' conduct and a 'hellish' workplace" in light of the addition of Government Code section 12923 in 2019].)

The Court in *Lyle, supra*, 38 Cal.4th 264, explained that "a hostile work environment sexual harassment claim is not established where a supervisor or coworker simply uses crude or inappropriate language in front of employees or draws a vulgar picture, without directing sexual innuendos or gender-related language toward a plaintiff or toward women in general. [Citations omitted.]" (*Id.* at 282.) The severity of a hostile sexual environment harassment case "should not be viewed too narrowly" and should consider from a reasonable person perspective a "careful consideration of the social context in which particular behavior occurs and is experienced by its target" and the fact that the "real social impact of workplace behavior" may not be "fully captured by a simple recitation of the words used or the physical acts performed." (*Id.* at 283 [citations, internal quotation marks omitted].) As to the pervasiveness of the harassment, "when the harassing conduct is not severe in the extreme, more than a few isolated incidents must have occurred to prove a claim based on working conditions. [Citations omitted.]" (*Id.*)

Plaintiff has raised triable issues of material fact as to whether Duggan's conduct created a hostile work environment that affected her work. There is evidence that Duggan's harassment of Plaintiff began with a text message exchange in June 2020 that could reasonably have been interpreted as a suggestion by Duggan that he might go to her home after a party, and continuing through 2021 with Duggan's weekly "gossip" sessions addressing sexual activities of other work colleagues, multiple sexually suggestive comments by Duggan made to Plaintiff at the November 2020 party, Duggan allegedly starting a rumor she was involved with Deputy Chief Selover, and Duggan's increasingly aggressive demeanor toward Plaintiff described at some length in her November 2021 summary of her conversation with Chief Meyer. (AF 316 and Pl. Exh. 141 [document under seal, so the Court does not describe the content].) Though one of the sexually explicit remarks at the November 2020 party was directed at Chief Meyer (a male), it was made in Plaintiff's presence and was arguably part of Duggan's ongoing sexually explicit commentary in Plaintiff's presence or directed toward her. (UMFs 35-41; AFs 193-219, 319.) The District also tries to suggest that Duggan's behavior was not a reflection of gender harassment, but rather that he could be rude and demeaning and make sexual comments to persons of both genders. (*But see* AF 226, 227, 232-240, 253-260, 263-265, 317.)

The Court finds the record in this case distinguishable from the record which the California Supreme Court found was insufficient to support a hostile work environment claim in *Lyle*, reversing the Court of Appeal reversal of a trial court order granting summary judgment for defendants. The Court

addressed a complaint by one of the writers on the show *Friends*, and it found the facts did not show sexual harassment. (*Lyle, supra*, 38 Cal.4th at 288-289.) The Court characterized the record as reflecting "a workplace where comedy writers were paid to create scripts highlighting adult-themed sexual humor and jokes, and where members of both sexes contributed and were exposed to the creative process spawning such humor and jokes. In this context, the defendant writers' nondirected sexual antics and sexual talk did not contribute to an environment in which women and men were treated disparately. Moreover, there was nothing to suggest defendants engaged in this particular behavior to make plaintiff uncomfortable or self-conscious, or to intimidate, ridicule, or insult her, as was the case in *Ocheltree*." (*Id.* at 288.) The District does not bear the characteristics of the writers' workshop on *Friends*. The evidence supports a reasonable inference Duggan's repeated sexually suggestive remarks directed toward Begin and/or made in her presence coupled with evidence of Duggan's aggressive remarks toward Begin was not merely behavior in which Plaintiff was treated the same as men in the District's work environment, or at least the facts and inferences to be drawn from the facts are sufficiently in dispute to warrant consideration by a jury and not a determination as a matter of law on this record. On this record, the Court cannot find as a matter of law that Duggan's sexual and other comments directed at Begin or made in her presence and his aggressive demeanor toward Begin were not severe or pervasive and did not result in an objectively and subjectively hostile work environment for Begin.

The motion for summary adjudication of Issue Number 2 as to the second cause of action for harassment based on hostile work environment is **denied**.

G. Issue Number 3 - Retaliation in Violation of FEHA (4th C/A)

FEHA makes it unlawful for an employer "to discharge, expel, or otherwise discriminate against any person because the person has opposed any practices forbidden under this part or because the person has filed a complaint, testified, or assisted in any proceeding under this part." (Govt. Code § 12940(h).) As to the District, a plaintiff can establish a prima facie claim of retaliation in violation of Government Code section 12940(h) by showing: "(1) he or she engaged in a 'protected activity,' (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action. [Citations omitted.]" (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.)

An "adverse employment action" includes "the entire spectrum of employment actions that are reasonably likely to adversely and materially affect an employee's job performance or opportunity for advancement in his or her career." (*Yanowitz, supra*, 36 Cal.4th at 1053.) The adverse employment action must be one that can be viewed as "materially affecting the terms, conditions, or privileges of employment"; "the phrase 'terms, conditions, or privileges' of employment must be interpreted liberally and with a reasonable appreciation of the realities of the workplace in order to afford employees the appropriate and generous protection against employment discrimination that the FEHA was intended to provide." (*Id.* at 1053-1054.)

Plaintiff alleges that she suffered retaliation in the form of being passed over for a promotion and being excluded from various meetings, including the Standards of Cover Meetings in September 2021, after her complaints regarding her lack of promotion, which she contends was gender-based discrimination, and after she complained about Duggan's conduct as sexual harassment and a hostile

work environment. (2AC ¶¶ 21-35, 38, 40-46, 54-58, 62-64, 71-76.)

Plaintiff has raised a triable issue as to whether some of her job responsibilities were transferred to Lon Phares in February 2021 in retaliation for her complaints in November 2020 and December 2020 about conduct by Duggan. (Pl. Resp. to UMFs 23, 24; AFs 258-260, 262-269, 273-275, 284, 285.) As detailed more fully above, she has also raised triable issues as to whether in July 2021, Meyer made an unsolicited proposal to Maples to assume the head of the EMS Division after Plaintiff complained about Duggan's improper remarks at a meeting on June 15, 2021 even though she had been effectively acting head of the EMS Division since April 2021 when Lon Phares transitioned out of the EMS Division, and when the 2020 Core Review Services recommended that the organizational structure of the EMS Division eliminate a Battalion Chief as an intermediate supervisor rather than the EMS Coordinator reporting directing to the Deputy Chief. (*See, e.g.*, Pl. Resp. to UMFs 23, 24; AFs 165, 166, 262-269, 276, 277.) Plaintiff has also raised triable issues on the retaliation cause of action as to whether Plaintiff's exclusion from key meetings was retaliation for her protected activity based on her complaints to the District both when Lon Phares took over initiatives she had been working on in February 2021, after she complained in November 2020 and December 2020 about Duggan's alleged harassment, and after Maples was fairly abruptly designated as Interim EMS Division Chief (or Manager) and attended, among other things, the Standard of Cover Meetings after she complained again about Duggan's rude and demeaning conduct toward her on June 15, 2021.

The motion for summary adjudication of Issue Number 3, the first cause of action for retaliation, is **denied**.

H. Issue Number 4 – Failure to Prevent Discrimination and Harassment – (3rd C/A)

It is an unlawful employment practice under FEHA for an employer to fail to prevent discrimination or harassment from occurring. (Govt. Code § 12940(k).) As such, the claim is a derivative claim; the predicate for a failure to prevent claim is the existence of a claim for discrimination or harassment sufficient to meet the standards of those claims under FEHA. (*Dickson v. Burke Williams, Inc.* (2015) 234 Cal.App.4th 1307, 1317-1318.) Plaintiff's claim for failure to prevent is based on her suffering both harassment based on a hostile work environment and gender discrimination in her lack of promotion and exclusion from work meetings. (2AC ¶¶ 13-48, 54-65, 81-86, 89, 91.)

The Court has concluded there is sufficient evidence to support Plaintiff's gender discrimination claim for the reasons stated above, which supports this derivative claim for failure to prevent discrimination.

For the reasons set forth, the Court has also concluded that Plaintiff has raised triable issues of fact regarding both her discrimination and harassment claims. Plaintiff made multiple complaints about Duggan in November and December 2020. Meyer admitted he did nothing in response to the November 2020 complaint, claiming it was merely "banter." (AF 319.) Plaintiff asserts Duggan's sexually related comments continued to her at least weekly continued in 2020 and 2021, and that, although he was no longer her formal supervisor as of March 2020, she continued to have to interact with him as part of her job duties. (Pl. Resp. to UMFs 17, 41 [Begin asking to discuss training issue with Duggan].)

The motion for summary adjudication of Issue Number 4 as to the third cause of action for failure to

prevent discrimination and harassment is **denied**.

Plaintiff's Evidentiary Objections to Meyer Declaration

Obj. Nos. 1-9 – **Overruled**.

Defendants' Evidentiary Objections

The Court only rules on those evidentiary objections the Court deems material to the determination of the motion. (Code Civ. Proc. § 437c(q).)

A. Objections to Begin Declaration

Obj. Nos. 1-7, 11, 13, 16, 17, 21, 29, 30 - **Overruled**. As to Chief Meyer's alleged statements to Begin, they are admissible as admissions of a party opponent, as the head of the District. (Evid. Code § 1220.) As to paragraph 21, the Court accepts Begin's statements as her beliefs regarding the incidents and explanations for her leave and resignation, not for the truth of the underlying facts.

Obj. No. 10 – **Sustained in part** as to the last sentence.

Obj. No. 14 – **Overruled** except sustained as to a portion of the last sentence regarding Meyer taking "no action against Duggan as a result of the evening." The Court admits Begin's statement concerning the "message" Chief Meyer was conveying not as true but as Begin's interpretation of the statement which could explain acts or omissions of Begin subsequent to the discussion.

Obj. No. 15 – **Sustained in part** except as to the last three sentences for relevance and speculation as to the last sentence.

Obj. No. 18 – **Overruled** except as to the last sentence.

Obj. No. 19 – **Sustained**.

B. Objections to Swartzell Declaration

Obj. Nos. 31, 34, 35, 36, 37, 39, 40, 41, 42, 43, 45, 47 – **Overruled**.

Obj. Nos. 48-51 – **Sustained**.

C. Objections to Word Declaration

Obj. No. 52 – **Sustained in part** as to the first sentence; **overruled** as to the second sentence.

Obj. Nos. 53, 62, 63 – **Overruled**.

Obj. No. 54 – **Sustained in part** as to the second sentence; **overruled** as to the first sentence.

Obj. Nos. 55-60, 64 – **Sustained**.

Obj. No. 61 – **Sustained**, except as to first sentence and last sentence.

D. Objections to Plaintiff's RJN

Plaintiff's Response to the UMFs in the SS and her AFs do not refer to RJN Exhibits 62-86, and the Court has not considered them. The Court has no need to rule on Objection Nos. as a result.

As to RJN Exhibits 50-61 and 87-89, the Court **sustains** defendants' Objection Nos. 65-76 and 102-104 to those documents on the ground of lack of authentication. (Evid. Code §§ 453(b), 1400, 1401(a).) "Points and authorities are not presented under penalty of perjury. Matters set forth in points and authorities are not evidence. [Citation omitted.]" (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal. App. 5th 574, 590.) (*See also In re Marriage of Duris & Urbany* (2011) 193 Cal.App.4th 510, 515 ["The allegations of a brief are not evidence, and a brief is not a sworn document."].) The request for judicial notice is argument, not evidence by a declarant with personal knowledge attesting to the facts necessary to authenticate the documents. (*See, e.g., Wassmann v. South Orange County Community College Dist.* (2018) 24 Cal. App. 5th 825, 842 [declining to take judicial notice of records in part based on lack of authentication].)

6. 9:00 AM CASE NUMBER: C23-01274
CASE NAME: NATASHA WINDOM VS. SKSS ENTERPRISES INC.

***HEARING ON MOTION IN RE: COMPLIANCE HEARING**
(MOTION FOR FINAL APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT GRANTED ON 3/4/26)
FILED BY:

TENTATIVE RULING:

Summary

This compliance hearing was scheduled pursuant to the Court's order for final approval and judgment of the class action settlement filed on March 18, 2026.

On March 4, 2026, the Court ordered Plaintiff's counsel to submit a compliance statement one week before this compliance hearing date. No compliance statement was filed by the Parties. Five percent (5%) of the attorney's fees were withheld by the claims administrator. Those fees will continue to be held until Counsel files a compliance statement. Plaintiff's Counsel is ordered to appear on June 3, 2026 to show cause as to why they should not be held in contempt for failing to file a compliance statement.

7. 9:00 AM CASE NUMBER: C24-00719
CASE NAME: EMILY CROSS VS. TARIM HOLDINGS, LLC

***HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT**
FILED BY:

***TENTATIVE RULING**

The Parties are ordered to appear either in person or remotely. This motion was heard on April 29, 2026 and continued to allow the parties to meet and confer regarding whether defense counsel would accept service of Plaintiff's Second Amended Complaint.